פרשת משפטים is a favorite among ישיבאלייט because it serves as the foundation for all the הלכות of נזיקין, בבא קמא, בבא מציעא, and בבא בתרא. There's a lot of Yeshivish תורה on משפטים. One of the classic הלכות in this parsha concerns the גנב and גזלן. Specifically, regarding a גנב, the תורה discusses the case of טבח ומכר, as the פסוק states (שמות כ״א:ל״ז): כִּי יִגְנֹב אִישׁ שׁוֹר אוֹ שֶׂה וּטְבָחוֹ אוֹ מְכָרוֹ חֲמִשָּׁה בָקָר יְשַׁלֵּם תַּחַת הַשּׁוֹר וְאַרְבַּע צֹאן תַּחַת הַשֶּׂה. We are familiar with the דברי חז״ל about why a שה requires a payment of ארבעה while a שור requires חמשה. They explain that when someone steals a שה, they may experience some embarrassment or טירחא because they have to carry it on their shoulders. This difficulty slightly mitigates their punishment, as the תורה recognizes the discomfort involved in the עבירה.

R' Yerucham Levovitz draws a relevant lesson from this concept for our own lives. He points out that none of us are going around stealing בהמות and shechting them or selling them, but we can ask ourselves how we perform our מצוות. Just as the גנב receives a reduced punishment due to the lack of joy in his עבירה, so too, when someone performs a מצוה without enthusiasm and שמחה, their reward may be diminished.

This idea is emphasized in the תוכחה (דברים כ״ח:מ״ז): תַּחַת אֲשֶׁר לֹא עָבַדְתָּ אֶת ה׳ אֱלֹקֶיךָ בְּשִׂמְחָה וּבְטוּב לֵבָב מֵרֹב כֹּל. The word בְּשִׂמְחָה is key here. But someone might ask, "Isn't it enough that we're doing the מצוות? Why does it matter whether or not we do them with joy?"

The answer, as all the בעלי מוסר explain, is not about giving a person a hard time for lacking joy. The point is that when it comes to trivial matters - work, entertainment, or even ביטול זמן - people often experience genuine שמחה and excitement. So the question becomes: are our מצוות filled with the same joy and enthusiasm as these other, less meaningful activities? That is the תוכחה. That is the מוסר. We need to reflect on what it truly means to do a מצוה. What are we doing when we perform a מצוה? We are serving הקדוש ברוך הוא! What could possibly be greater than that? Yet, we sometimes lose sight of this because מצוות become routine. We get used to doing them over and over again without thinking deeply about their significance.

I've shared this thought before, but it's worth repeating. Every morning when I put on my תפילין, I try to recapture the שמחה I felt when I first put them on as a בר מצוה בחור. Even if I'm running late to shul, I try to remind myself of that first time, when I was excited and trembling to fulfill this מצוה. That's how we should approach all of our מצוות - with joy and excitement as if it were the first time.

The גדולים exemplified this attitude. אהרן הכהן is described with the words (במדבר ח׳:ג׳) וַיַּעַשׂ כֵּן אַהֲרֹן - he lit the מנורה with the same enthusiasm each time, even after doing it thousands of times. His שמחה and dedication never waned.

We should strive to do every מצוה with gratitude and joy, appreciating the tremendous זכות we have to serve הקדוש ברוך הוא. These מצוות are opportunities, and we should be grabbing them, collecting them like the jewels that they are. We Jews should be collecting the jewels so that we will benefit the most from our עבודת השם.



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